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The Politics of Federal Sentencing on Cocaine

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The disparity in federal sentencing between crack and powder cocaine, and its disproportionate impact on African Americans, is well documented. Many critical analyses conclude that this disparity should be significantly reduced, if not eliminated altogether. They assume that federal policy is based primarily on sound data and academic analysis, or secondarily on the motivation to do the right thing. However, the U.S. Sentencing Commission learned the hard way that good government does not necessarily prevail because the facts line up. Unfortunately, most Members of Congress do not perceive it to be in their interest to eliminate the disparity in sentencing on cocaine by increasing the amount of crack required to trigger a mandatory sentence. The question, then, is whether it is possible to change that dynamic and if so, how.

Overall, federal laws on crime and drugs are not usually based on sound analysis of the data. In Congress, "rationality has taken a back seat to politics."[1] Most policy on crime and drugs is driven by the need to produce "get tough" rhetoric for the next election cycle. It is no coincidence that almost every omnibus crime control bill passed in the past two decades became law during an election year—usually within months, or weeks, of that year's election. Federal laws to increase sentence length and/or federalize crimes respond to Members' of Congress perception of their constituents' fear of crime and desire to feel safe in their communities. The attendant rhetoric generated on the House and Senate floor plays very well during campaigns. Especially noteworthy is the amount of floor time spent repeatedly on anecdotal horrific *state* crimes to justify enactment of *federal* law.

Similar to the nuclear buildup of decades past, where one could never have too many weapons, there is no limit to the harsh sentences and prison construction that will suffice to make people feel safe. Unfortunately, at the rate we are federalizing crimes and building prisons in the United States, it may well take a Republican with impeccable law and order credentials to bring sanity to the debate on crime and punishment.

The politics of federal sentencing on crack are but a microcosm of the larger debate on crime and drugs. In order to eliminate the disparity in sentencing through increasing the amount of crack required to trigger mandatory minimum sentences, it is necessary to create a political climate that allows Members of Congress to change the law. Some Members who want to "do the right thing" need political cover, although most want to appear responsive to their constituents. The only way to get their votes is by activating a constituency to whom Congress is inclined to be responsive. More studies and more data and more op-eds by the same people are not going to make that happen.

The Crack-Cocaine Disparity

Possession of more than 5 grams of crack is punishable by a minimum of 5 years in prison; simple possession (without intent to distribute) of any quantity of powder by first offenders is a misdemeanor punishable by no more than 1 year in prison.[2] A ten-year mandatory minimum sentence is triggered by trafficking 50 grams of crack, but one must traffic 5000 grams of powder cocaine to trigger the same sentence.[3] In 1993, 88.3 percent of those sentenced for trafficking crack were African American; 4.1 percent were white.[4] Although more white Americans use and sell drugs than minorities, far smaller proportions of whites than blacks are arrested, prosecuted, convicted and incarcerated for drug offenses.[5] When fewer numbers of drug offenders are locked up, they are likely to be higher level dealers, since most judges sentence such offenders to prison. But as the number of drug arrests increases, far more small-time users and dealers will be brought within the system.

Congress first enacted harsh mandatory minimum sentences for crack in 1986, with little scientific data about the drug, with little debate, and in the midst of media-influenced hysteria following the death of basketball star Len Bias, who was assumed to have died of a crack overdose. The Anti-Drug Abuse Act of 1986 established mandatory minimum penalties for persons convicted of trafficking in a variety of controlled substances, including the 100-to-1 ratio between powder and crack cocaine.[6]

As detailed by the U.S. Sentencing Commission in its 1995 Special Report to Congress ("the 1995 Report"),[7] the Bias autopsy revealed that in fact he had died from a powder cocaine overdose.[8] The corrected information, however, did not warrant front-page news coverage, or a reassessment of the subsequent federal sentencing policy. Instead, subsequent election years led to increasingly harsher sentences. The Anti-Drug Abuse Act of 1988 created the mandatory minimum for simple possession of

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crack—the only federal mandatory minimum for a first offense of simple possession of a controlled substance.[9]

Representative Charles Rangel (D-NY) introduced "The Crack-Cocaine Equitable Sentencing Act of 1993" (H.R.3277) to eliminate the disparity between sentences for powder and crack by increasing the quantity of crack required to trigger a mandatory sentence. This bill was incorporated into "The Crime Prevention and Criminal Justice Reform Act" (H.R.3315), the omnibus crime control bill drafted on behalf of the Congressional Black Caucus and introduced by Reps. Craig Washington (D-TX), Don Edwards (D-CA), John Conyers (D-MI) and others. When the House Judiciary Committee began consideration of the Administration's omnibus crime bill (introduced by then-Senate Judiciary Committee Chairman Joe Biden and House Judiciary Committee Chairman Jack Brooks), various elements of the Congressional Black Caucus's Crime Bill were introduced as Amendments, including the Rangel bill on the equitable sentencing of crack and cocaine.

But the Rangel bill could not make it out of committee. There were not enough votes in the Democratically controlled Judiciary Committee despite the fact that Subcommittee Chairman Bill Hughes—former prosecutor and moderate Democrat from New Jersey—led the charge. Representative Charles Schumer (D-NY) would have considered a bill to achieve parity if the amount of powder cocaine required for a mandatory minimum sentence were reduced to equal that required for crack. In other words, he wanted to achieve parity by locking up hundreds of young white kids for using small amounts of powder cocaine. Senator Carol Mosley-Braun suggested a similar "solution" when she was approached to discuss potential amendments on the Senate floor.

Ultimately, Representative Hughes brought the Rangel bill to the floor of the House during debate on the omnibus crime bill in 1994.[10] A formal colloquy with Representative Brooks ensured that the Amendment was pulled and replaced with the standard legislative solution to a difficult issue: a congressional request for a study.

The resulting 1995 Report from the Sentencing Commission proposed a change in the sentencing guidelines to eliminate the differential treatment between crack and powder cocaine offenses in setting base sentences. The Report also recommended that Congress eliminate the differential treatment in the mandatory minimum statutes. The Department of Justice immediately sent draft legislation to Congress to overturn the Commission's proposals. For the first time since the enactment of the guidelines, Congress in October 1995 failed to adopt the Commission's proposed guideline amendments. Congress asked the Commission to take another look at the issue and report back, but this time with non-binding recommendations. Pursuant to Public Law No.104-38, the Sentencing Commission in April 1997 submitted another *Special Report to the Congress: Cocaine and Federal Sentencing Policy* ("the 1997 Report").

The 1997 Report recommended that the triggering amount for a 5-year mandatory minimum sentence for crack be changed from the current 5 grams to somewhere in the range of 25-75 grams; and that the triggering amount for a 5-year mandatory sentence for powder cocaine be changed from the current 500 grams to somewhere in the range of 125-375 grams. In other words, the 1997 Report seemed to advocate replacing the current 100:1 ratio between crack and powder with a 5:1 quantity ratio between the two.

Somehow in the two-year interval between 1995 and 1997, the Sentencing Commission found that its analysis of the data which had justified sentencing parity in 1995 now permitted a *slight* disparity between crack and powder due to the systemic violence associated with multiple and anonymous drug sales of crack markets. Incidentally, the Commission reached this conclusion despite the fact that the sentencing guidelines were designed to take just such factors into account. Since the data had not changed, other factors must have intervened—*e.g.*, a change in the composition of the Sentencing Commission or a different perspective as to what can affect congressional action.

Since the Sentencing Commission was not set up to function as an advocate, but rather as an independent body to provide information and recommendations to Congress, it has limited experience in strategizing to achieve its goals when they are at odds with Congress's interests.

Strategies for Bringing About an Effective and Just Crime Policy

Timing is critical to the federal legislative process. As discussed above, crime bills usually move during election years when Members of Congress stand the most to gain by focusing on crime and drugs.

Crime rates have been dropping in most major U.S. cities over the past 5 years. It is often politically useful to credit increased sanctions for this turnaround, despite a variety of other potential factors such as an improved economy and changing demographics. Crediting "get tough" crime policy helps justify the status quo, or the enactment of more mandatory sentences. There is no reason to question policies that are "working." If, on the other hand, crime were rising, the analysis could be inverted to justify more prisons and harsher sentencing policy.

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The importance of appearing harsh on crime cannot be over-estimated in a tough race for an upcoming election. Ever since the "successful" Willie Horton advertisements helped spell doom for the Dukakis Presidential Campaign, more and more campaign advertising has focused on the other candidate's history of apparent responsiveness to crime, or lack thereof. Most Members of Congress are only too aware that any action—especially a vote—which can be used against them in campaign advertisements usually will be. The rhetoric is just too appealing.

There are exceptions. Whereas every Member of the House is up for election every two years, only one-third of the Senate is running for re-election at any given time. Sometimes that extra time liberates Senators. In addition, a small group of Members can afford to vote their conscience. They are either elected from safe districts or so principled on particular issues that their stance is tolerated by their constituents. This is even more so when they have announced retirement plans (*e.g.*, Representative Hughes' position on crack in 1993 may in part be attributed to his retirement at the end of that Congressional Session). If the goal is to make it possible for Members of Congress to vote to change sentencing policy, some will need political cover, but most will need pressure. This can be achieved in a variety of ways.

First, legislation that will be perceived as "soft" has a better chance of passage if coupled with "get tough" legislation in other areas of criminal law. For example, the Violent and Repeat Juvenile Offender Act of 1997 (S.10) currently before Congress provides just such an opportunity, as it would greatly limit the discretionary nature of the entire juvenile justice system while treating an increasing number of kids as adults so as to subject them to mandatory penalties. Such "tough" legislation could be combined with a "soft" drug bill. Stand-alone bills, however, force votes that few Members of Congress can afford to risk.

Second, bipartisan legislation, especially under a Republican-controlled Congress, has a much better chance of success. Moderate Republicans are often in the best position to take the lead. Historically, Senators Charles "Mac" Mathias (R-MD) and Lowell Weicker (R-CT) successfully championed rational criminal justice policy. Former prosecutors and members of the Senate Judiciary Committee Mike DeWine (R-OH) and Arlen Specter (R-PA) have advocated for drug courts, alternatives to incarceration, and treatment in prison. While progressive Democrats can make great policy statements, they are rarely able to move the legislative body on principle alone.

Third, Members' constituents who want change serve as the best kind of cover for a vote—they provide the political pressure to which the Member must be responsive. Constituents of an issue are usually defined as consumers, but consumers of crime and drug policy are not usually effective advocates, and often they are not well-positioned to drive policy and effect changes. In particular, it is not easy to motivate the constituents who live in key Members' Districts to advocate for a rational federal sentencing policy on cocaine. What's in it for them?

Nevertheless, even non-voters who pressure for change can provide some cover if they are viewed as credible. For example, those professionals whose work is affected by the current sentencing policy on cocaine—such as prosecutors, district attorneys, and police—have enormous credibility in Congress because they are generally viewed as realistic and unbiased; they "tell it like it is." Law enforcement's role as an advocate for stronger gun control laws over the past few years provides a good example of Congress's responsiveness to such constituencies.

Strategizing for a New Crack/Cocaine Policy

Due to the small qualities which trigger mandatory sentences, the current federal sentencing laws on crack focus on low-end dealers and users, not the kingpins responsible for moving large quantities of drugs. Yet, when Congress established 5-year mandatory minimum sentences, Members said they wanted them to apply to a mid-level or serious dealers. It is also in the interests of law enforcement to target high-end dealers so as to receive valuable information about high-level operations.

Obviously, on policy issues the White House is responsive to polls in general, and President Clinton has redirected the Democratic Party with poll numbers in mind. This has been particularly true on issues of crime and drugs. One of his first articulated priorities was to take back the crime issue from the Republicans. When the debate on cocaine policy is viewed within that context, it becomes clear that any solution which would reduce the mandatory nature of federal sentencing policy is simply not an option. On the other hand, parity achieved by *decreasing* the amount of powder required to trigger mandatory sentencing—such as S.260 introduced by Senator Abraham (R-MI)—has the potential to reduce disparity but maintain the mandatory sentencing structure.

That the Administration has not always spoken with one voice on the issue should not come as a surprise. It is due in large part to competing interests in an ever-changing environment. The Justice Department's goals have changed over time and reflect differences among political and career employees. While the Department has multiple objectives, in general it would prefer to keep the U.S. Attorneys happy, maintain primacy over crime and drug policy, and devise legislation based on an inherent difference between powder and crack.

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The Office of National Drug Control Policy became involved in the crack-cocaine issue when former Director Lee P. Brown supported the recommendations in the 1995 Sentencing Commission Report and advocated a redesign of the sentencing guidelines so as to take into account any inherent systemic difference between powder and crack, such as violence. Current Director Barry McCaffrey has also played an important role on this issue and has helped move the White House away from the Administration's earlier attack on the 1995 Report, forging a temporary partnership with a Department of Justice that also endorses a significantly reduced ratio.

But in the current political climate the Administration's new position—although welcome—does not appear to be sufficient to significantly change the debate in Congress. To eliminate or significantly reduce the disparity in federal sentencing policy on cocaine, the political climate to which Congress responds must be changed.

The focus should be on motivating constituencies, such as voters in key Congressional Districts. Other voices from the criminal justice system must be heard on the issue: judges and prosecutors as well as defense attorneys and law enforcement professionals who know that such disparate sentencing is unworkable must speak up. But the reality is that the state level is one step removed from federal legislation, and professionals at the state and local level do not necessarily choose to get involved on federal policy matters. A successful strategy has to take this situation into account by demonstrating the potential impact of federal policy on state and local government.

The racial component of the sentencing policy on crack/cocaine often serves to bring attention and public debate. However, when this issue is framed primarily as one of race, only 80 Members of Congress will vote accordingly. While such a vote may provide a welcome opportunity for public debate, it can also be polarizing. When true parity in sentencing is framed as the only *just* position, any argument that does not acknowledge race is at risk.

In order to change current sentencing laws it may be more politically realistic to argue that high-end drug dealers must become the primary targets of federal sentencing laws. After such a reframing of the issue, an active constituency seeking change could then force a strategic compromise of changed ratios. The pending omnibus juvenile crime bill might provide an opportunity to increase judicial discretion in this area, for example, by expanding the safety valve for non-violent offenses to include low-level crack offenders. Solely forcing up or down votes in Congress on the current sentencing structure in the present political climate is unlikely to lead to much change in the near future.

Notes

[1] Ronald Weich, *The Battle Against Mandatory Minimums: A Report from the Front Lines*, 9 Fed. Sent. R. 94 (1996).

[2] *See* 21 U.S.C. § 844(a).

[3] *See* 21 U.S.C. § 841(b)(1)(A).

[4] *See* U.S. Sentencing Commission, Special Report to the Congress: Cocaine and Federal Sentencing Policy 161 (Feb. 1995).

[5] *See* Marc Mauer & Tracy Huling, The Sentencing Project, Young Black Americans and the Criminal Justice System: Five years Later 12 (Oct. 1995).

[6] Pub. L. No. 99-570, 100 Stat. 3207 (1986).

[7] U.S. Sentencing Commission, *supra* note 4, at 122-123.

[8] *See id.* at 122-23.

[9] Pub. L. No. 100-690, 102 Stat. 4181 (1988).

[10] Pub. L. No. 103-322 (1994).

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